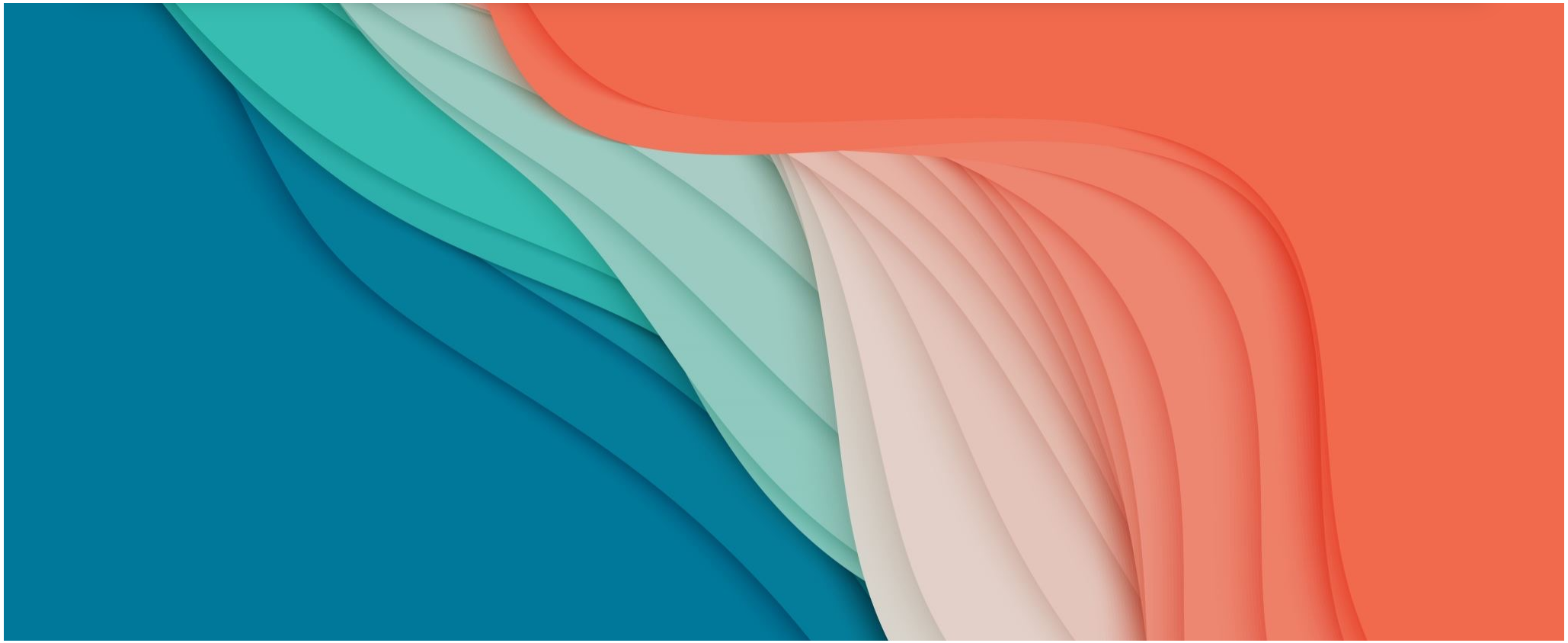
Justice Frameworks

COLLEGE 117

April 29, 2026



Today

Overview of Faden Health Justice Frameworks

Application of Faden & Powers to a Cognitive Enhancement Drug

Faden & Powers

Foundational legitimacy of claims for justice in healthcare goods & services lies in their essential and direct role in human well-being

Core elements of well-being (elements influenced by social structures)

- Health
- Personal security from harm (psychological & physical)
- Development of reasoning
- Formation and maintenance of personal attachments
- Respect of others
- Self-determination

Social justice twin aims:

- First: Achieve sufficient level of well-being in each of six core dimensions
- Second: Combat emergence and persistence of systematic disadvantage that undermine the achievement of sufficient level of health

What is sufficient good health?

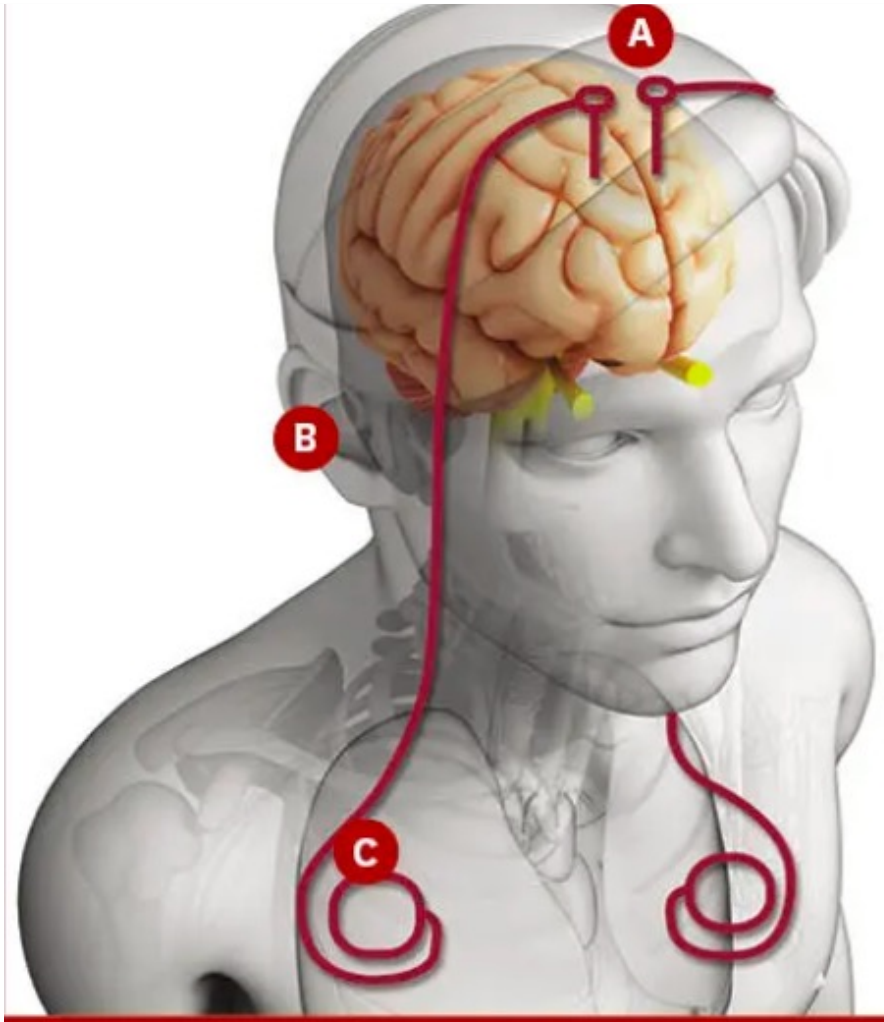
Individuals are entitled to those health-related goods and services that are required for a sufficiency of health and other essential dimensions of well-being

Sufficiency in health is tied to the idea of what is sufficient (not tied to flourishing)

Faden & Powers
(What is a sufficiently decent human life)

--Not subjugated, not marginalized, not stigmatized or deprived of full use of one's faculties

--We judge what is enough by reference to impact of relative inequalities on ability to lead self-determining lives, avoid conditions inimical to decent human life



DEEP BRAIN STIMULATION: HOW DOES IT WORK?

A **DBS Leads** — Thin insulated wires are inserted into the brain through small holes in the skull.

B **Extension Wires** — The wires are threaded under the skin and down the side of the head and neck, then connected to the battery pack.

C **Implantable Pulse Generator (IPG)** — This pacemaker-like device is implanted near the collar bone and sends pulses to targeted structures within the brain.

Keck Medicine of USC

KeckMedicine.org

Faden & Powers Key Questions

Would people without [this technology] be so deprived that they could not live decent lives as human beings?

Does not providing access lead to the kinds of disadvantages that are so systematically oppressive that people cannot have decent lives?

What are social structures/social practices that impact educational attainment?

What are social structures/social practices that impact educational attainment?

- Rawls identified health, intelligence & imagination as “natural goods”
- Some examples:
  - Quality of schools and teachers
  - Tutoring
  - Reading or just presence of books in the house

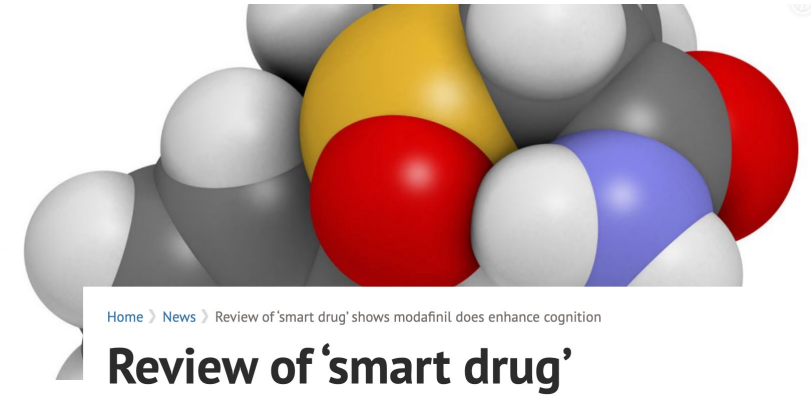
Cognitive enhancement drugs

Examples:

- Caffeine
- Methylphenidate (Ritalin)
- Dextroamphetamine (Adderall)
- Modafinil



Modafinil



Home › News › Review of 'smart drug' shows modafinil does enhance cognition

Review of 'smart drug' shows modafinil does enhance cognition

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- Developed to treat narcolepsy
- Improves alertness, wakefulness, planning & decision-making
- Use as cognitive enhancement
  - Pilots & surgeons

Applying Faden & Powers: Should a health system provide Modafinil?

Would people without [Modafinil] be so deprived that they could not live decent lives as human beings?

Does not providing access lead to the kinds of disadvantages that are so systematically oppressive that people cannot have decent lives?

Transnational justice (Faden & Powers)

If affluent countries provide universal access to DBS [Modafinil], then global affluent also use it: comparative disadvantages of not being enhanced translate into systematic constraints that impact whether people can live decent lives: enhancement would become required by their standard transnationally

Next week:

- Bias and justice issues in health AI